

TENTATIVE RULING FOR CIVSB2121501
Department S24 - Judge Carlos M. Cabrera

This courtroom follows California Rules of Court, rule 3.1308(a)(2) for tentative rulings. See also San Bernardino Superior Court Local 561. **If both sides do not appear, the tentative will simply become the ruling.**

Garcia v. Lifetime Brands, Inc., et al
Motion: Set Aside Default Judgment
Movant: OS4Labor, LLC (OS4, Defendant)
Respondent: Rosa Garcia and Yenia Monzon (Plaintiffs)

RELEVANT FACTUAL AND PROCEDURAL BACKGROUND

On July 26, 2021, Plaintiffs filed this action against Defendants Lifetime Brands, Inc. (Lifetime) and OS4. Both Defendants were served with the complaint in early September 2021. (See Proof of Service filed 9/10/21.) On October 15, 2021, Lifetime answered. On April 18, 2022, the Court granted Lifetime's motion to compel arbitration, finding an enforceable delegation clause required the arbitrator to determine the enforceability of the arbitration agreement between Lifetime and OS4. The Court concurrently stayed the entire litigation pending the outcome of the determination of arbitrability.

On October 23, 2023, Plaintiffs filed a notice of settlement of the entire action. On January 26, 2024, the Court dismissed Defendant Lifetime from the action at Plaintiff's request. On December 26, 2024, the Court entered default against OS4. On September 2, 2025, the Court entered default judgment against OS4 for \$96,487.49. On February 11, 2026, OS4 filed this motion to set aside the default. Plaintiffs oppose.

ANALYSIS

California Code of Civil Procedure Section 473 states in pertinent part:

The court may, upon any terms as may be just, relieve a party or his or her legal representative from a judgment, dismissal, order, or other proceeding taken against him or her through his or her mistake, inadvertence, surprise, or excusable neglect. Application for this relief shall be accompanied by a copy of the answer or other pleading proposed to be filed therein, otherwise the application shall not be granted, and shall be made within a reasonable time, in no case exceeding six months, after the judgment, dismissal, order, or proceeding was taken. (CCP §473(b).

Case law construing the statute states that a court has broad discretion to vacate a default judgment, default, or order; however, said discretion can only be exercised if the moving party

establishes a proper ground for relief, by proper procedure, and within the appropriate periods. (*Cruz v. Fagor America Inc.* (2006) 146 Cal.App.4th 488, 495.)

The instant motion is correctly limited to challenging the entry of the default judgment. On December 26, 2024, the Court entered default against OS4. The time to file a motion under Section 473(b) to challenge the entry of the default, expired June 24, 2025. Therefore, regardless of the merits to setting aside the default judgment, the proposed answer cannot be filed, and the judgment will not change as it was supported by pleadings filed along with the request for entry of a court judgment.

As to the merits to the motion to set aside the default judgment, OS4 fails to meet their burden of proof. OS4 concedes mandatory relief for attorney fault is unavailable. Attorney Brown's statements concerning OS4's lack of contact with attorney Gaule lack personal knowledge weakening their evidentiary effect. There is no declaration from agent for service Gordon concerning the service of pleadings and his interactions with attorney Gaule. Finally, OS4 retained Brown in November 2025 but the instant motion until three months.

RULING

1. Defendant OS4Labor, LLC Request to Set Aside Default Judgment is DENIED.
2. Movant to give Notice.